

## DISSENTING OPINION BY M. EHRLICH.

I regret to find myself in disagreement with certain aspects of the judgment which has just been delivered.

### I.

While the Court has, in principle, jurisdiction to decide on submission No. 1, I do not think that the Court can consider that submission in the present case.

It followed from Judgment No. 7, without the necessity of an explicit statement, that the Polish Government was bound to make reparation for any damage which may actually and unlawfully have been inflicted as a result of the attitude of the Polish Government declared by that judgment not to have been in conformity with certain stipulations of the Geneva Convention. This is a consequence of the principle that the violation of an international obligation entails the duty of reparation, a principle so generally accepted that in the classification of international disputes of a legal character, embodied in Article 13 of the Covenant of the League of Nations, and in Article 36 of the Statute of the Court (of which classification more will be said presently), there is no special class of disputes as to the duty of making reparation for a breach of an international obligation, as distinguished from disputes concerning the existence of a fact which, if established, would constitute a breach of an international obligation: this latter class of disputes obviously includes the former. Both the applicant and the respondent Governments appear to have understood Judgment No. 7 in the sense just outlined, and, as the Case sets out, they actually entered into negotiations with a view to determining the reparation due to the two Companies; the Polish Government even suggested that the negotiations be carried on directly with the Companies concerned.

Since the jurisdiction of the Court in the present case is based on Article 23, paragraph 1, of the Geneva Convention which stipulates that:

[*Translation.*]

"Should divergences of opinion resulting from the interpretation and from the application of Articles 6 to 22 arise between the German Government and the Polish Government, they should be submitted to the decision of the Permanent Court of International Justice.<sup>1</sup>",

it follows that the Court has no jurisdiction where there is no divergence of opinion. Now, the Case says:

[*Translation.*]

"Thus there is no more a divergence of opinion between the two Governments that the reparation should be made, in principle, by way of a pecuniary indemnity.<sup>2</sup>"

The principle of reparation seems, therefore, admitted; for there is not even a divergence of opinion as to the further question, what form reparation should take.

The jurisdiction of the Court in any given case cannot be taken to rest on facts contrary to what is alleged by the Applicant. In the present case, a lack of such a divergence in the matter of submission No. 1 appears from the statements of the applicant Government.

The conclusion to be drawn is not weakened by the fact that submission No. 1 asks for the determination of the time limits of the damage; for these are the logical time limits within which the damage must lie, whether or not the Court has jurisdiction to estimate it. Nobody can be made responsible for any damage before it has arisen, and a court in estimating damage will consider those of its aspects which, at the time of estimating, it will be in a position to appreciate.

## II.

The judgment which has just been delivered holds that the jurisdiction of the Court to entertain submissions Nos. 2-4 of the

<sup>1</sup> "Si des divergences d'opinion, résultant de l'interprétation et de l'application des articles 6 à 22, s'élevaient entre le Gouvernement allemand et le Gouvernement polonais, elles seraient soumises à la décision de la Cour permanente de Justice internationale."

<sup>2</sup> "Ainsi, il n'existe plus de divergence d'opinion entre les deux Gouvernements que la réparation doit être faite, en principe, par la voie d'une indemnisation pécuniaire."

Case, follows from the jurisdiction to decide upon the demand for reparation.

Yet in international law jurisdiction to decide, in principle, that a violation of an international engagement has taken place and that, consequently, reparation is due, is distinct from jurisdiction to determine the nature and extent of reparation in general and the amount of a pecuniary indemnity in particular.

I agree that the classification of international disputes (of a legal character) which would be of most importance in the present case, is the classification adopted in Article 13 of the Covenant of the League of Nations, and reappearing in Article 36 of the Statute of the Court. Article 36 of the Statute provides that a State may accept the jurisdiction of the Court

“... in all or any of the classes of legal disputes concerning :

- (a) the interpretation of a treaty ;
- (b) any question of international law ;
- (c) the existence of any fact which, if established, would constitute a breach of an international obligation ;
- (d) the nature or extent of the reparation to be made for the breach of an international obligation.”

It is quite possible that a State should accept the optional clause, for instance, as to disputes belonging to class (c) only, or to classes (a) and (c). The State in question would not thereby accept, and would not be presumed to accept, the jurisdiction of the Court as to class (d). The classes were understood to be distinct, and jurisdiction to decide disputes belonging to one class cannot be assumed to imply jurisdiction to decide disputes belonging to another class. In the present case, jurisdiction under Article 23, paragraph 1, of the Geneva Convention, relates only to disputes which would fall, as was submitted by the respondent Government, into classes (a) and (c).

Neither can jurisdiction to decide disputes belonging to one class be deduced from jurisdiction to decide disputes belonging to another class, by estimating the relative importance of both classes ; for the estimate will depend, like every question of the relative importance of things, on the criterion adopted as basis of the comparison. And even if a comparison could be made with

the help of a universally accepted criterion, it could still not be inferred that jurisdiction concerning the more important class of disputes implies jurisdiction concerning a different, though less important class. For the Parties might purposely have conferred on a court—and most of all on this Court—the competence to settle the most important disputes, without wishing to burden the Court with disputes of less importance, particularly since, by deciding on the interpretation of a treaty stipulation or on the correctness of its application, the Court could probably point the way for the solution, or prevention, of a number of disputes, while the question of reparation might have to be considered in each individual case.

It seems, indeed, to have been an established practice long before the adoption of the Covenant of the League of Nations and of the Statute of the Court, in cases in which an arbitral tribunal was to deal with the questions of the amount of reparation or the mode of payment, as distinguished from or in addition to a divergence of opinion as to the interpretation of a treaty or as to a violation of a treaty or of a rule of general international law, to specify such powers of the tribunal in the *compromis*.

### III.

While jurisdiction to assess the damages and to fix the mode of payment does not, in international law, follow automatically from jurisdiction to establish the fact that a treaty has not been applied, although it should have been applied, it is necessary to consider whether the Parties to the Geneva Convention did not intend to confer upon the Court that jurisdiction.

Two preliminary remarks must be made.

First, the answer to the question just formulated turns, not on the interpretation of any of Articles 6 to 22 of the Geneva Convention, but on the interpretation of Article 23 itself; for the question is, whether Article 23, paragraph 1, should be read as conferring on the Court jurisdiction to decide what reparation is due to individuals from the Polish State (this is the correct term used in Article 5 of the Convention) if the Polish Government fails to act in conformity with Articles 6 to 22.

Secondly, the intention to confer upon the Court such a jurisdiction must be ascertainable either from the wording of the compromise clause or at least from the circumstances in which the clause was drawn up, and it must be ascertainable in a way which demonstrates that the force of the arguments militating in favour of the Court's jurisdiction is preponderant.

No affirmative answer to the question of the Court's jurisdiction in the matter of submissions 2-4 can be gleaned from Article 23. The words "interpretation and application" do not, by themselves, imply such an affirmative answer. They refer to processes, of which one, interpretation, is that of determining the meaning of a rule, while the other, application, is, in one sense, that of determining the consequences which the rule attaches to the occurrence of a given fact; in another sense, application is the action of bringing about the consequences which, according to a rule, should follow a fact. Disputes concerning interpretation or application are, therefore, disputes as to the meaning of a rule or as to whether the consequences which the rule attaches to a fact, should follow in a given case. Now, Articles 6 to 22 of the Geneva Convention do not prescribe any specific consequences which should follow if the Polish Government were to disregard the rule laid down in Article 6. Therefore, although such a disregard would be a violation of the Convention, yet the determination of the nature and the extent of the reparation would not be the settlement of a dispute concerning the interpretation or application of Articles 6 to 22.

The word "resulting from", used in Article 23, although different from the words "concerning", "in the matter of", generally used in compromise clauses in connection with the words "interpretation and application", does not give to Article 23 a different meaning, which would prevent it from remaining a typical compromise clause. For every divergence of opinion "in the matter of" interpretation or application is, in a sense, a divergence of opinion "resulting from" interpretation or application, since, until each side has arrived at an opinion as a result of the process of interpretation or application of the treaty (application in the sense of determining the consequences which the treaty attaches to the occurrence of a fact), there can be no divergence of opinion in the matter of interpretation or application. The word "resulting" connects

the divergence of opinion with its nearest cause, i.e. the process of interpretation or application.

One might be tempted to maintain that since non-application, i.e., failure to bring about the consequences which a rule attaches to a fact, is bad application, and since bad application is a kind of application (in the second sense), therefore divergences of opinion in the matter of reparation to be made for such non-application are divergences of opinion resulting from application. Yet non-application is not application. If the treaty contains rules concerning such reparation, the determination of such reparation is clearly application (in the first sense) of the treaty. But if the treaty does not contain such rules, divergences of opinion in the matter of reparation due for violations of the treaty are divergences of opinion in the matter of general, as distinguished from conventional, international law.

Since, therefore, the words "interpretation and application" do not necessarily relate to the determination of the nature and extent of reparation for the violation of a treaty, it follows that to base such a jurisdiction on Article 23 would require an extensive interpretation, whereas not to deduce such a jurisdiction from that article would imply the natural and not a restrictive interpretation. In other words, a presumption must be taken to exist, not for, but against deducing that jurisdiction from Article 23. The presumption would, of course, be defeated if it could be shown that at the time of the Geneva Convention, or shortly before that time, the meaning of the compromise clause was generally understood to be such as the clause has now been declared to have. But nothing has been brought to the attention of the Court to prove conclusively that the clause "interpretation and application" was considered in the practice of nations, during the last quarter of the nineteenth or in the twentieth century, up to the time of the Geneva Convention, to comprise jurisdiction in the matter of the determination of the nature and extent of reparation for the violation of the treaty in question. In particular, no such deduction can be made from the Postal Convention, to which reference was made, but which establishes a specific case of responsibility of the postal administrations.

On the other hand, it is not easy to defeat the inference from the Russian Explanatory Memorandum which accompanied the Russian project for an arbitration convention in 1899 and which divides all possible international conflicts into two groups, one of them comprising cases in which

[*Translation.*]

“one State demands from another an indemnity of a material kind for damages and losses caused to itself or to its nationals by the acts of the defendant State or of its nationals, which it considers not to be in conformity with the law<sup>1</sup>”,

while the other group comprises cases in which

[*Translation.*]

“one State demands from the other that it exercise or do not exercise certain specified attributes of the Sovereign Power, that it do or do not do certain specified acts which do not relate to material interests”.

It is to the latter group that belong, among other disputes, the disputes concerning the interpretation and application of treaties, some of which were enumerated in the Russian project itself. While ultimately the Conference of 1899 did not adopt the principle of obligatory arbitration, even for the cases originally suggested by the Russian project, the Committee proposals accepted, in principle, the Russian division, and in all the history of the proceedings of the committees of the Conference, there seems to be nothing to suggest that the division outlined in the Russian explanatory note was not considered correct. It is difficult, therefore, to admit that the group of disputes concerning interpretation and application of treaties was supposed to include *ipso facto* disputes concerning the amount of damages to be paid in case of the violation of such treaties.

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<sup>1</sup> “Un État demande à un autre une indemnisation matérielle pour dommages et pertes causés à lui-même ou à ses ressortissants par des actes de l'État défendeur ou de ses ressortissants qu'il juge n'être pas conformes au droit.”

<sup>2</sup> “Un État demande à un autre d'exercer ou de ne pas exercer certaines attributions déterminées du Pouvoir souverain, de faire ou de ne pas faire certains actes déterminés ne touchant pas à des intérêts d'ordre matériel.”

In view, however, of the judgment now delivered, any treaty henceforward concluded, containing a compromise clause similar to that of Article 23 of the Geneva Convention, will have to be interpreted in the light of this judgment.

#### IV.

The question arises whether it is permissible to interpret Article 23, paragraph 1, of the Geneva Convention as conferring upon the Court jurisdiction to decide only (1) how an article should be interpreted and (2) whether, in a given case, the consequences which should follow from a given fact have followed,—without giving the Court the further power of deciding what reparation is due and in what way it should be made. The answer to this question was given by the Court in Judgment No. 7, when it dealt with the question of declaratory judgments. Moreover, while in the law of various countries it is possible to observe the development of the institution of declaratory judgments, in international relations a judgment of this Court, establishing the fact that a violation of a treaty has occurred, has no less power of settling a dispute than a subsequent judgment determining the amount of damages to be paid.

#### V.

Next it must be considered whether the general construction of Part I of the Geneva Convention does not make it imperative to assume that the Court, and no other tribunal, has jurisdiction in cases like the present. The decision contained in Judgment No. 6 is of course binding, so far as the question, which was then before the Court, is concerned. As to the question which has now been raised, it seems that Heads I—III of Part I of the Convention form one whole. Head II lays down the general principle of respect for acquired rights. Head III, while maintaining the principle, permits of certain exceptions. It is possible, but it is not *a priori* necessary to suppose that the general remedies under Head II, which lays down the rule, should not be available in cases falling under Head III, which, while admitting exceptions, confirms the same rule.

Both interpretations being admissible, it seems that there is a presumption in favour of that interpretation which (1) allows the individual to apply to a tribunal for the protection of his rights, without making that protection depend on a decision of the government, and (2) diminishes the amount of litigation, and therefore of disputes, between States.

Of course, from now on, the judgment now passed must be considered as determining the question in a way which could only be changed by a new agreement of both Parties.

## VI.

It remains to consider whether an intention of the Parties to the Geneva Convention to confer the jurisdiction in question on the Court may not be inferred from a *contemporanea expositio*, to be gathered, in the words of Sir Robert Phillimore, from the acts of the Parties which preceded, accompanied, and followed soon after the making of the treaty.

On behalf of the respondent Government, attention was drawn to Article 11 of a Convention concluded by Poland with Germany on April 21st, 1921, i.e. about a year before the conclusion of the Geneva Convention. That article provides that:

“Each High Contracting Party shall be entitled to refer any disputes which may arise either as to the interpretation or the application of the present Convention, to the decision of a permanent tribunal of arbitration . . . .

“The Tribunal shall decide all disputes on the basis of the provisions of this Convention, and on the general principles of law, and of equity.

“It shall be competent to decide the amount, if any, of compensation to be made to the injured Party by the Party found guilty of any infraction of the provisions of this Convention.”

Since both Conventions were concluded by the same Parties within a short space of time, the fact of the omission in the later Convention of a clause which, in the earlier, supplemented the statement of the jurisdiction conferred on the tribunal in question,

seems to convey an indication that the omission was intentional and that it was not desired to produce the effects which the clause inserted in the earlier, but not in the later Convention, was to produce.

As to the attitude of the Parties after the conclusion of the Geneva Convention, which is valuable as an indication of the views of the Parties regarding the clause in question and as calculated to throw light on the intention of the Parties at the time of the conclusion of the Convention, an inference may be drawn from the fact that the action which was brought by the German Government against the Polish Government in 1925 and which led to Judgments Nos. 6 and 7, was stated, on behalf of the German Government, in the pleadings, not to demand restitution or indemnity and to have been limited to a demand for a declaration, for this reason, among others, that doubts might possibly arise whether the jurisdiction under Article 23 relative to divergences of opinion "concerning" the interpretation and application of certain stipulations would also comprise reparation on account of an interpretation or application not in conformity with those stipulations. It was added that while the German Government believed that in principle such a jurisdiction should be considered as established, it did not desire to burden its Application with this delicate problem.

It would appear, therefore, that as late as 1925 the German Government was not convinced of the undeniable correctness of the interpretation now suggested. Nothing has been alleged before the Court in the present proceedings to suggest that the Polish Government has admitted the correctness of such an interpretation of Article 23. The inference from this attitude of both Parties is that they had at the time of the conclusion of the Geneva Convention no intention to give to Article 23 a meaning such as is now suggested.

I agree, however, that in the question of the jurisdiction of the Court and of the tribunals of the Geneva Convention, the present judgment will henceforth be binding.

(Signed) LUDWIK EHRLICH.

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